

WAS/Prop/872/08/2022
EMBASSY OF INDIA
Washington DC

TENDER NOTICE No. 05/2025

The Embassy of India, Washington DC invites Proposal for Maintenance of garden at India House located at 2700 Macomb Street NW, Washington DC 20008 under two-bid system from registered and authorized firms.

2. Embassy's website <https://www.indianembassyusa.gov.in/Tender> and Central Procurement Portal (CPP) at <https://eprocure.gov.in/cppp/may> also be referred to for complete details, scope of work, and conditions of eligibility.

3. The bids should be submitted in three sealed envelopes {Envelope-A "Earnest Money Deposit" through a Cheque / Banker's Cheque / Demand Draft for US\$ 2000.00 (US Dollars Two Thousand Only) in favour of "Embassy of India, Washington DC" or signed copy of Bid Security Declaration as per Annexure F, Envelope-B "Technical Bid Documents", and Envelope-C "Financial Bid Documents"}. Three envelopes containing "A", "B" & "C" shall be duly superscripted with above titles and put in another sealed envelope superscripted with the title "Proposal for Maintenance of garden" at India House located at 2700 Macomb street NW ,Washington DC 20008.

4. The Competent Authority reserves the right to reject any or all the bids or cancel the tender, without assigning any reason and the decision of the competent authority shall be final and binding.

5. Last date for receipt of bids is Jan 15, 2026, till 1700 hrs. (EST).



(Prem Kumar)
Head of Chancery
Embassy of India
Tel: 202.939.7034

Email: hoc.washington@mea.gov.in

LETTER OF BID

Dated:December, 2025

To,
First Secretary (HOC),
Embassy of India,
2107 Massachusetts Avenue NW,
Washington DC 20008

Ref: Invitation for Bid No. **WAS/Prop/872/08/2022** dated _____

We, the undersigned, declare that:

We have examined and have no reservations to the Bidding Documents, including Addenda issued in accordance with Instructions to Bidders,

2. We offer to execute in conformity with the Bidding Documents for providing gardening services for the India House located at 2700 Macomb Street NW, Washington DC 20008.

3. Our bid shall be valid for a period of 180 days from the date fixed for the bid submission deadline in accordance with the Bidding Documents and shall remain binding upon us and maybe accepted at any time before the expiry of the period.

4. If our bid is accepted, we commit to submit a Performance Security Deposit in accordance with the Bidding Documents.

5. We also declare that the Government of India or any other Government body has not declared us ineligible or blacklisted us on charges of engaging in corrupt, fraudulent, collusive or coercive practices or any failure/lapses of serious nature.

6. We also accept all the terms and conditions of this bidding document and undertake to abide by them, including the condition that you are not bound to accept highest ranked bid / lowest bid or any other bid that you may receive.

Yours sincerely,
(Authorized Signatory)

(Authorized person shall attach a copy of Authorization for signing on behalf of Bidding company)

Full Name and Designation
(To be printed on Bidder's letterhead)

INVITATION TO BID

Name of Proposal for Maintenance of garden at India House located at 2700 Macomb Street NW, Washington DC 20008.

Embassy of India, Washington DC hereby invites for "Proposal for Maintenance of garden at India House located at 2700 Macomb street NW, Washington DC 20008. Details of tender are as under:

S. No.	Particulars	Annexure
(i)	Scope of Work	A
(ii)	Eligibility Criteria	B
(iii)	Instructions for bidding	C
(iv)	Special conditions of contract	D
(v)	Standard format for Bank Guarantee	E
(vi)	Bid Security Declaration	F
(vii)	Checklist	G

DATES TO REMEMBER

<u>Events</u>	<u>Date</u>
Notice Inviting Tender	Dec 22, 2025
Starting date of Tender Submission	Dec 23, 2025 (1000 hrs onwards)
Pre-bid Site visit (Only with prior appointment through email on hoc.washington@mea.gov.in or prop5.washington@mea.gov.in)	Dec 23, 2025 to Jan 12, 2026 (between 1000hrs to 1600hrs)
Pre-bid meeting	Jan 12, 2026
Last date of Bid submission	Jan 15, 2026 (upto 1700hrs)
Opening of Technical Bids	Jan 16, 2026 (1500hrs)
Opening of Financial Bids (of only those who qualify in the minimum eligibility criteria)	Jan 16, 2026 (1600 hrs)

LANDSCAPE @ INDIA HOUSE

SCOPE OF WORK

“Maintenance of garden” at India House located at 2700 Macomb street NW, Washington DC 20008 (area of whole property : 5.52 acres) (300 man hours per month)

January:

- Blow and remove the leaves and sticks off the property; maintain the property, as necessary.

February:

- Aerate the lawn (includes entire property inside the fence)
- Lawn Treatment – lime, fertilize, etc.
- Seed the Lawn

March:

- Lawn treatment - spreading fast acting lime and spring fertilizer.
- Spreading of mulch on the flower and plant beds.
- Weed control application either by hand or chemical solution.

April to May:

- Spring clean-up includes trimming the shrubs, weeding the bed and mulching all beds and plants (includes the newly cleaned rear and side areas)
- Apply preen above and below mulch (weed control)
- Fertilize the shrubs
- Pre-emerge weed control for lawn
- Add new plants based on the season
- Ensure all the sprinklers are working and time them according to the need
- De-weeding and removing the vines
- Other Miscellaneous works related to garden maintenance required from time to time.

June to September:

- Weekly weed the beds and clean the shrubs
- Blow the leaves around the landscape and hardscape
- Ensure all the sprinklers are working and time them according to the need

October:

- Aerate the lawn (includes entire property inside the fence)
- Lawn Treatment – lime, fertilize, etc.

- Fall Cleanup Begins-Remove all the leaves fallen on the lawn and around the house.
- Seed the Lawn
- Ensure all the sprinklers are working and time them according to the need.

November & December:

- Fall clean up includes- Trimming the shrubs, weeding the beds and mulching all beds and plants (includes newly clean rear and side areas)
- Apply preen above and below mulch (weed control)
- Ensure all the sprinklers are working and time them according to the need. Winterize the sprinkler system when it is required according to the weather/ temperature.
- Winter: In the event of snowstorms, ample ice melts prior to and during event to prevent snow and ice from accumulating.
- Winterize the sprinkler system

Winter Services:

- Ice melting salts to be supplied to the residence for use on snow and ice on the driveway. Cost of ice melting salt is to be included in the service.

Throughout the Year:

- The company will water the plants/ flowers/ pots both indoors and outdoors as per the requirement and ensure that they are in excellent condition. The company will also be responsible for the placement of plants/ flower pots on the property according to the need and based on the events hosted by the Embassy. The grass is to be mowed regularly.

Garden Area outside Kitchen area :

- Weekly weed the beds and clean the shrubs
- Installing nets to protect the garden. The kitchen garden is not a separate entity. It is part of the lawn maintenance.
- The company will perform one comprehensive service and two 'blowing leaves/ sticks off of landscape and hardscape' services a week. In addition, one blow up service will be performed on the day an event is hosted at 2700 Macomb Street NW, Washington, D.C.
- All the landscape lights are to be connected to the timer and the company has to ensure that they are in working condition and the timer is set according to the sunrise and sunset throughout the year.

It is the responsibility of the maintenance company to ensure all the garden area at the property and indoor plants are maintained in excellent condition year-round. The company will be solely responsible for providing all materials, labor and equipment necessary for performing the services listed above.

ELIGIBILITY CRITERIA

The following shall be the eligibility criteria for selection of bidders at technical bid stage of the bidding process:

- (a) **Legally Valid Entity:** The Bidder/Bidding Firm should be a registered entity under relevant laws of the DC government. The proof for supporting the legal validity of the Bidder/Bidding Firm shall be attached with the bid. The firm should have relevant license for the purpose of taking up gardening work in DC.
- (b) **Experience:** The Bidder shall have experience of undertaking similar jobs as per scope of work for at least last three (3) years. The bidders should attach proof of experience along with their bids.
- (c) **Bidder's profile:** The bidder may provide the organization's profile with total number of employees working in the company.
- (d) **Bidder's financial status :** The bidder's must submit his financial status in terms of annual turnover during the last three years with an annual turnover of **at least USD 1,25,000 per year**.
- (e) As proof of having fully adhered to eligibility criteria, attested copies of experience certificates for similar works handled by the company in the past or ongoing work issued by the Foreign Embassy/Government Ministries/Departments/Public Sector Companies/reputed corporate organizations/multinational companies/ international clubs shall be attached with bid document.

INSTRUCTIONS FOR BIDDING

- 1.1 For the purpose of Bidding / Tender Document, the Embassy of India, Washington DC shall be referred to as 'Client' and the Bidder/Successful Bidder shall be referred to as 'Contractor' and / or 'Bidder' or interchangeably.
- 1.2 The tender document can be downloaded from the Embassy's website <https://www.indianembassyusa.gov.in/Tender> and Central Procurement Portal (CPP) at <https://eprocure.gov.in/cppp/> from Dec 22, 2025 onwards. The last date of submission of bids is Jan 15, 2026 till 1700 hrs. (EST).
- 1.3 While all efforts have been made to avoid errors in the drafting of the tender document, the Bidder is advised to check the same carefully. No claim on account of any errors detected in the tender documents shall be entertained.
- 1.4 The bidder shall submit the copy of the authorization letter / Power of Attorney as the proof of authorization for signing on behalf of the Bidder.
- 1.5 All Bidders are hereby explicitly informed that conditional offers or offers with deviations from the conditions of Contract, the bids not meeting the minimum eligibility criteria, Technical Bids not accompanied with EMD of requisite amount, or any other requirements stipulated in the tender documents are liable to be rejected.
- 1.6 The Parties to the Contract/Agreement shall be the successful bidder (to whom the work has been awarded) and the Client, Embassy of India, Washington DC.
- 1.7 For all purposes of the contract including arbitration thereunder, the address of the bidder mentioned in the bid shall be final unless the bidder notifies any change of address by a separate letter handed over personally/courier or by email to the Embassy of India, Washington DC. The bidder shall be solely responsible for the consequences of any omission or error to notify any change of address in the aforesaid manner.
- 1.8 This is a LUMPSUM FIXED PRICE TENDER with Extent of work as defined in the Scope of Work enclosed. The bidder shall examine the Tender Document and all Addenda (if any) before submitting his Tender and shall become fully informed as to the extent, quality, type and character of operations involved in the Works and shall visit and acquaint himself with the Site of the Works. No consideration or compensation will be given for any alleged misunderstanding of the articles to be furnished.
- 1.9 Bidders are required to quote Fixed prices. Contractor shall satisfy himself about the quantities in Scope of Work in Tender Document. They are free to add/delete items, change quantities which are needed for completion of the job. These quantities shall not form part of the agreement, however, the unit rates quoted shall be used for variation, if any.

2. EARNEST MONEY DEPOSIT

- 2.1 The Earnest Money Deposit of US\$ 2000.00 (US Dollar Two Thousand only) in the form of Account Payee Cheque / Banker's Cheque / Demand Draft issued by any reputed Bank drawn in favour of "Embassy of India, Washington DC" has to be submitted along-with the bid. The Account Payee Cheque / Banker's Cheque / Demand Draft must be valid for six (6) months from the last date of submission of bids **or signed copy of Bid Security Declaration as per Annexure -F.**
- 2.2 No request for transfer of any previous deposit of Earnest Money Deposit or Performance Security Deposit or adjustment against any pending bill held by the Embassy in respect of any previous work shall be entertained.
- 2.3 Bidders shall not be permitted to withdraw their offer or modify the terms and conditions thereof. In case the bidder fails to observe and comply with the stipulations made herein or backs out after quoting the rates, the aforesaid EMD shall be forfeited to the government or will render the bidder ineligible to submit bids for contracts with the Embassy of India Washington DC.
- 2.4 The bids without Earnest Money Deposit or signed copy of Bid Security Declaration shall be summarily rejected.
- 2.5 No claim shall lie against the Embassy in respect of erosion in the value or interest on the amount of earnest money deposit or security deposit i.e. no interest will be payable on EMD.
- 2.6 The EMD may be forfeited:
 - (i) If the bidder withdraws his bid during the period of validity of the bids specified by the bidder in the bid form; or
 - (ii) In case of successful bidder, if the bidder
 - (a) fails to sign the contract in accordance with the terms of the tender document.
 - (b) fails to furnish required Performance Security Deposit in accordance with the terms of Tender Documents within the time frame specified by the client; or
 - (c) fails or refuses to honour his own quoted prices for the services or part thereof.

3. VALIDITY OF BIDS

- 3.1 Bids shall remain valid and open for acceptance for a period of 180 days from the last date of submission of Bids.
- 3.2 In case, client calls the bidder for negotiation, this shall not amount to cancellation or withdrawal of original offer which shall be binding on the bidder.

- 3.3 The client may request for extension for another period of 60 days, without any modifications and without giving any reasons thereof.

PRE-BID MEETING/SITE VISIT: Interested firms/service agencies may visit the site for visualization and better understanding of the quantum of work during Dec 23, 2025 to Jan 12, 2026 from 1000 hrs to 1600 hrs after fixing a prior appointment through e-mail on hoc.washington@mea.gov.in or prop5.washington@mea.gov.in . A pre-bid meeting will take place on Jan 12, 2026, at 1500 hrs at Chancery1 located at 2107 Massachusetts Ave NW ,Washington DC 20008. The bidders may also submit their queries by email on the aforementioned email ID which will also be discussed in the pre-bid meeting.

4. PREPARATION OF BIDS

- 4.1 **Language:** Bids and all accompanying documents shall be in **English** only. The technical as well as the financial bids should be submitted in two envelopes.
- 4.2 **Earnest Money Deposit:** Earnest Money Deposit of USD 2000/- in the form of Account Payee Cheque / Demand Draft / Pay Order or **signed copy of Bid Security Declaration as per Annexure -F** to be submitted separately in a sealed envelope superscribed as **“Envelope A – Earnest Money Deposit”**.
- 4.3 **Technical Bid:** Technical Bid should be prepared as per the instructions given in the Tender Document along with all required information, documents in support of the eligibility criteria. **All the documents comprising the Technical Bid shall be put in a separate sealed envelope superscribed as “Envelope B – Technical Bid”**.
- 4.4 **Financial Bid:** Bidder shall prepare the Financial Bid (lump-sum amount) as provided in the Tender Document (Annexure- I). Financial Bid shall be put in a separate sealed envelope superscribed as **“Envelope C- Financial Bid”**.

5. SUBMISSION OF BIDS

- 5.1 The Bidding firms have to submit the tenders in two bid system {i.e (i) Technical Bid and (ii) Financial Bid}. Tenders are to be submitted to the Head of Chancery, 2107 Massachusetts Avenue NW Washington DC -20008. All the documents in support of eligibility criteria etc. and other required documents are to be submitted along with the Tender Documents. No Tender Documents will be accepted after the expiry of stipulated date and time for the purpose under any circumstances whatsoever.

The tender shall be submitted in sealed envelopes as described below:

ENVELOPE 'A' : EMD (Account Payee Cheque / Banker's Cheque / Demand Draft) or signed copy of Bid Security Declaration as per Annexure -F.

ENVELOPE 'B' : Technical bid

ENVELOPE 'C': Financial Bid

- 5.2 No Bid shall be accepted after the specified date and time. However, the Competent Authority in the Embassy reserves the right to extend the date / time for submission of bids, before opening of the Technical Bids.

6. **BID OPENING PROCEDURE**

- 6.1 The Technical Bids (Envelope B) shall be opened in the Board Room of the Embassy of India, Washington DC on Jan 16, 2026 at 1500 hrs (EST) in the presence of bidders or their representatives and the Tender Evaluation Committee constituted by the Competent Authority of the Embassy. After evaluation of Technical Bids, a list of qualified bidders will be prepared by the Embassy. The Financial bids (Envelope 'C') will be opened subsequently.
- 6.2 Bids shall be declared as valid or invalid based on the preliminary scrutiny, i.e. on site verification of documents submitted by the bidders by the Tender Evaluation Committee. The financial bids will be opened on result of such scrutiny. However, in case anything found false or forged in contrary to the documents submitted by the bidder, its bid will be rejected and suitable legal action may be taken.
- 6.3 The Financial Bids of only those bidders, who qualify at Technical Bid stage, shall be opened by the Committee authorized for the purpose.
- 6.4 The date fixed for opening of bids, if subsequently declared as holiday by the Government, the revised date of schedule will be notified. However, in absence of such notification, the bids will be opened on next working date, the time remaining unaltered.
- 6.5 A letter of authorization shall be submitted by the Bidder's representatives before opening of the Bids.
- 6.6 Absence of bidder or their representative shall not impair the legality of the opening procedures.
- 6.7 After opening of the Technical Bids and verifying the EMD amount/Bid Security Declaration, the technical bids shall be evaluated to ensure that the bidder meets the eligibility criteria as specified in the Tender Document.

7. **CLARIFICATION ON TECHNICAL BID EVALUATION**

- 7.1 The Technical Bids shall be evaluated based on the available documents submitted by the bidder. To assist in the examination, evaluation, and comparison of the bids, and qualification of the bidders, the Embassy may, at its discretion, ask any bidder for a clarification of its bid. Any clarification submitted by a bidder that is not in response to a request by the client shall not be considered. The client's request for clarification and the response shall be in writing.
- 7.2 If a bidder does not provide clarifications of its bid by the date and time set in the Embassy's request for clarification, its bid may be rejected.

- 7.3 Embassy also reserves the right to seek confirmation/clarification from the issuer agency, on the supporting documents submitted by the bidder.

8. PERFORMANCE SECURITY (PS):

- 8.1 The successful bidder has to deposit Performance Security which will be a sum equivalent to 10% of the accepted contract value in favour of 'Embassy of India Washington DC', payable at Washington DC in form of account payee Cheque / Banker's Cheque / Demand Draft / Bank Guarantee within fifteen days of the acceptance of the **Letter of Award (LoA)**. Performance Security should remain valid for a period of sixty days beyond the date of completion of all contractual obligations of the **service provider (SP)**. In case, the contract is further extended beyond the initial period, the Performance Security will have to be renewed accordingly by the SP. No interest shall be paid on Performance Security.
- 8.2 The Performance Security will be forfeited by order of the Competent Authority in Mission in the event of any breach or negligence or non-observance of any terms & conditions of the contract or for unsatisfactory performance or for nonacceptance of the work order. On expiry of the contract, portion of the Performance Security, as may be deemed fit by the Mission sufficient to cover any incorrect or excess payments made on the bills to the firm, shall be retained until the final audit report on the account of SP's bill has been received and examined.
- 8.3 If the Contractor fails to provide the Performance Security within fifteen days of the acceptance of LoA, such failure shall constitute a breach of the contract and the Embassy shall be free to make other arrangements at the risk, cost and expense of the Contractor.
- 8.4 On due performance and completion of the contract in all respects, the Performance Security will be returned to the SP without any interest on presentation of an absolute 'No Demand Certificate' from the SP and upon return in good condition of any specifications, samples or other property belonging to the Embassy, which may have been issued to the SP, for carrying out work stipulated in the contract.

9. Other Conditions, Force Majeure & Penalty Clause

- 9.1 The gardeners/workers provided by the Contractor should be on the roll of the Company and their antecedents should be pre-verified by the Police authorities. A copy of the verification of each worker shall be submitted to the Embassy before deployment for work at Chancery complex.
- 9.2 The bidder must have satisfactory arrangements for training of its workers. Confirmation in this regard is to be given.
- 9.3 The Company should submit precise profile of its key clients along with details of services provided.

9.4 If any gardener/worker is absent on a given day, the company will provide a substitute for him otherwise proportionate deductions will be made from the monthly payment.

9.5 In case the Contractor fails in adhering to the daily gardening requirements at Mission's premises, and Mission has to make alternative arrangements for gardening, then the Contractor would reimburse the cost of such arrangements.

9.6 The Contractor shall be fully responsible for all acts of omission or negligence, dishonesty or misconduct of its employees for work at Mission's premises. The Contractor would indemnify Mission against any compensation/claim and damages etc. due to accident or injury to its employees or death due to accident or otherwise, which may arise out of and during the course of their duties. Mission would not be liable to pay any damages or compensation to such gardeners/workers or to any third party.

9.7 In case of any complaint, either as regards the nature of service or as regards the behaviour of gardeners/workers on duty or otherwise, the Contractor would be intimated and would be required to take corrective measures promptly.

9.8 Embassy of India reserves the right to amend/withdraw any of the terms and conditions in the tender documents or to reject any or all tenders without giving any notice or assigning any reason. The decision of the Embassy in this regard shall be final and binding on all.

9.9 Quotation should be valid for six months (180 days) which would be opened by the authorized officers in the presence of representatives of the firms present at the time of opening of the tenders. The date, time and venue of opening of bids will be intimated to the companies.

9.10 Embassy of India reserves its right to revoke the contract at any time, if the services rendered are not found satisfactory during the period of the contract.

9.11 The Embassy may, by written notice sent to the Contractor, terminate the contract, in whole or in part at any time for its convenience. The notice of termination shall specify that termination is for the Embassy's convenience, the extent to which performance of work under the contract is terminated and the date upon which such termination becomes effective.

9.12 The bidder must have modern equipment, latest technical expertise for maintenance of gardens, lawns and related facilities, as has been defined in brief scope of work in Section 2 of this document. Machinery, equipment, implements, material and consumables proposed to be used should be clearly

indicated. List of equipment owned by the company may also be furnished with the bid.

9.13 The bidder will have to ensure compliance of all mandatory labour laws/regulations laid down by Govt. of USA. This will include payment of minimum wages and other benefits like bonus, leave, cost of uniform etc to bidder's each employee will solely be the liability of the bidder only.

9.14 Any wrong or misleading information will lead to disqualification.

9.15 The bidder shall deploy adequate manpower, machinery and resources to ensure completion of work as per stipulated operational timings. No over timing shall be allowed to the Contractor in this regard.

9.16 Should any new areas of work not envisaged as being part of this tender document are added, the prices for the new areas of work shall be mutually agreed upon between the Client and the Contractor based on the actual rate analysis or as per the prevailing rates as agreed in this tender document.

9.17 Additional staff required other than specified shall be obtained on pro-rata basis.

9.18 Mission reserves the right to remove any person found unfit.

9.19 The bidder would be responsible for all mandatory compliance for social, safety and environmental issues related to the performance of the service provider in the Mission's premises as stated in the eligibility criteria.

10 VALIDITY OF CONTRACT

The contract, if awarded, shall be valid for a period of ONE YEAR (01 year). The contract may be extended annually on year to year basis, for further 02 years [maximum tenure 03 years from the date of start of work initially] as per the contract signed on same terms and conditions and same rates, subject to satisfactory services provided by the vendor. In case of breach of contract or in the event of not fulfilling the minimum requirements / statutory requirements, the client shall have the right at any time to terminate the contract forthwith in addition to forfeiting the performance security amount deposited by the Contractor and initiating administrative actions for black listing etc. solely at the discretion of the competent authority in Mission.

11 PAYMENTS

11.1 The bidding amount should have clear break up of services and tax amount as Embassy is a valid Tax Exempted organization and copy of Tax Exemption card will be provided on signing of contract to waive off the taxes from the invoice.

11.2 The payment towards complete maintenance of the garden of India House will be made on monthly basis in the first week of the next month on submission of invoice by the company. The contract may be extended on annual basis for the next two years on mutual consent subject to satisfactory performance report by the users, and subject to no increase in the value of the Contract and no change in the existing terms and conditions.

11.3 The Contractor shall be responsible for minimum wages payment to his employees as per local laws. Besides, workmen compensation policy shall be taken for all workers by the Contractor at his cost. The Embassy of India shall be kept immune from any mishappening at site.

Annexure-I**Financial Bid**

**No. WAS/Prop/872/08/2022
Embassy of India, Washington DC**

(Property Section)

FINANCIAL BID

Sl. No.	Category	Minimum number of workforce required	Number of workforce quoted by Bidder	Price per worker/supervisor/manager/material & equipment per month	Total price
(a)	(b)	(c)	(d)	(e)	(d)x(e)
1	Manpower including one Horticulturist	300 man-hours per month			
2	Sundry Expenses/Overheads				
3	Management Fees				
4	Service Tax/any other applicable taxes	(as applicable)			
Total (1+2+3+4)					

Annual costing for the above items (Monthly value X 12) =

- (i) Payments shall be made by the Client as per the terms and conditions of the Tender Documents,
- (ii) The charges shall be on monthly basis.
- (iii) The quoted consolidated monthly amount prices shall be inclusive of all charges and taxes. It shall also include cost of training and uniform etc.

Note:

1. Pricing break up for each of the above mentioned components must be given separately.
2. All the cost heads specify Tax components separately as Embassy is a Tax

Exempted organization. The amount quoted should constitute the landed cost of hiring an external agency towards Gardening Services in 'India House" for a period of Twelve Months.

CONTACT DETAILS FORM

GENERAL DETAILS OF BIDDER

1. NAME OF THE COMPANY
2. NAME AND
DESIGNATION OF
AUTHORISED
REPRESENTATIVE
3. COMMUNICATION ADDRESS
4. PHONE NO./MOBILE NO.
5. FAX E-MAIL I.D,

PARTICULAR DETAILS OF THE BIDDER'S REPRESENTATIVE

1. NAME OF THE CONTACT PERSON
2. DESIGNATION
3. PHONE No
4. MOBILE No
5. E-MAIL ID

Annexure-III

Contract Agreement

CONTRACT/AGREEMENT NO DATED.....

THIS AGREEMENT is made onbetween Embassy of India, Washington DC (hereinafter referred to as "Client" which expression unless excluded or repugnant to the context be deemed to include his successors and assigns), and whose principal place of office is at 2107 Massachusetts Avenue NW, Washington DC of the One Part,
AND

M/s..... having its registered office at.....

(Hereinafter referred to as "the Contractor") which expression shall unless excluded by or repugnant to the context be deemed to include his successors, heirs, executors, administrators, representatives and assigns) of the other part for providing manpower services to Client

NOW THIS AGREEMENT WITNESSTH as follows:

WHEREAS the Client invited bids through open tender, vide Notice Inviting Tender dated _____ for "providing Gardening services required at India House located at 2700 Macomb Street NW, Washington DC under Tender No. Was/Prop/872/08/2022 dated_____

AND WHEREAS the Contractor submitted his bid in accordance with the procedure mentioned along with the bid documents and represented therein that it fulfills all the requirements and has resources and competence to provide the requisite services to the Client

AND WHEREAS the Client has selected M/s.....as the successful bidder ("the Contractor") pursuant to the bidding process and negotiation of contract prices, awarded the Letter of Acceptance (LoA) No....., to the Contractor on.....for a total sum of.....[USD.....Only] for providing Gardening services required at Embassy of India, 2700 Macomb Street NW Washington DC.

AND WHEREAS the Client desires that the gardening services (as defined in the Bidding Document) be provided, performed, executed and completed by the Contractor, and wishes to appoint the Contractor for carrying out such services.

AND WHEREAS the Contractor acknowledges that the Client shall enter into contracts with other contractors / parties for the gardening services of its premises in case the Contractor falls into breach of the terms and conditions as stipulated in the Tender Document and shall waive its claim whatsoever in this regard,

AND WHEREAS the terms and conditions of this Contract have been fully negotiated between the Client and the Contractor as parties of competent capacity and equal standing.
AND WHEREAS the Contractor has fully read, understood and shall abide by all the terms and conditions as stipulated in the Tender Documents for providing gardening services in the Client's premises, failing which the Contract is liable to be terminated at any time, without assigning any reasons by the Client.

AND WHEREAS the Client and the Contractor agree as follows:

In this Agreement (including the recitals) capitalized words and expressions shall have the same meanings as are respectively assigned to them in the Contract documents referred to.

The following documents shall be deemed to form and be read and construed as part of this Agreement. (This Agreement shall prevail over all other Contract documents) :-

- The Letter of Acceptance (LoA) issued by the Client;
- Notice to Proceed (NTP) issued by the Client;
- The complete Bid, as submitted by the Contractor;
- The Addenda, if any, issued by the Client;
- Any other documents forming part of this Contract Agreement till date;
(Performance Bank Guarantee, Bank Guarantee);
- Charges - Schedule annexed to this Article of Agreement;
- Supplementary Agreements executed from time to time.

Any changes/modifications/amendments required to be incorporated in the Contract Agreement at a later stage shall be discussed and mutually agreed by both the parties and such supplementary agreements shall be binding on both the parties and shall form the part of this contract agreement.

This Contract shall be governed by and construed in accordance with the laws of India. Each Party hereby submits to the jurisdiction as set out in the Dispute Resolution Procedure in the Conditions of Contract.

IN WITNESS WHEREOF the parties hereto have caused this Agreement to be executed in accordance with the laws of India on the day, month and year indicated above.

Signed on behalf of the Contractor
(Authorised Signatory)

Signed on Behalf of the Embassy of India
(Authorised Signatory)

PROFORMA OF BANK GUARANTEE

To

The Head of Chancery
Embassy of India, Washington DC

BANK GUARANTEES NO:

DATE:

Dear Sir(S)

This has reference to the Work Order No. _____ Dated _____ having been placed by Embassy of India, Washington DC with M/s (Name & Address of Contractor) for _____.

The conditions of this order provide that the Contractor shall,

- a. Arrange to carry out the services listed in the said order by the Client, as per details given in said order, and
- b. Arrange for the service support and provide the items to the Client on site as per the work order and bid documents.

M/s (Name of Contractor) has accepted the said work order with the terms and conditions stipulated therein and have agreed to issue the performance bank guarantee on their part, towards promises and assurance of their contractual obligations vide the work order No. _____ M/s. (name of Contractor) holds a current account with us and has approached us and at their request and in consideration of the promises, we hereby furnish such guarantees as mentioned hereinafter.

Embassy of India, Washington DC shall be at liberty without reference to the Bank and without affecting the full liability of the Bank hereunder to take any other undertaking of security in respect of the Contractor's obligations and /or liabilities under or in connection with the said contract or to vary the terms vis-a-vis the Contractor or the said contract or to grant time and or indulgence to the Contractor or to reduce or to increase or otherwise vary the prices or the total contract value or to forebear from enforcement of all or any of the obligations of the Contractor under the said contract and/or the remedies of the Embassy of India, Washington DC under any security(ies) now, or hereafter held by the Embassy of India, Washington DC and no such dealing(s) with the Contractor or release or forbearance whatsoever shall have the effect of releasing the bank from its full liability of the Embassy of India, Washington DC hereunder or of prejudicing right of the Embassy of India, Washington DC against the bank.

This undertaking guarantee shall be a continuing undertaking guarantee and shall remain valid and irrevocable for all claims of the Embassy of India, Washington DC and liabilities of the Contractor arising upto and until date.....

Your right to recover the said sum of USD. _____USD _____
_____ only) from us in manner aforesaid will not be affected/or
suspended by reason of the fact that any dispute or disputes have been raised the said M/s
_____ and/or that any dispute or disputes are pending before any officer, tribunal or
court or Arbitrator.

Our liability under this guarantee is restricted to US\$ _____
(USD _____ Only) Our guarantee shall remain in force until unless a suit
action to enforce a claim under guarantee is filed against us within six months from (which is
date of expiry of guarantee) all your rights under the said guarantee shall be forfeited and we
shall be relieved and discharged from all liabilities there under.

We have power to issue this guarantee in your favour under Memorandum and Articles of
Association of our Bank and the undersigned has full power to do under the power of Attorney
dated_____.

Notwithstanding anything contained herein:

- 1 Our liability under this guarantee shall not exceed US\$.....(in words)
- 2 This bank guarantee shall be valid up to.....& unless a suit for action to enforce a claim
under guarantee is filed against us within six months from the date of expiry of guarantee.
All your rights under the said guarantee shall be forfeited and we shall be relieved and
discharged from all liabilities there after i.e. after six months from the date of expiry of this
Bank guarantee.
- 3 We are liable to pay the guaranteed amount or any parts thereof under this bank guarantee
only and only if you serve upon us a written claim or demand on or before
- 4 The Bank guarantee will expire on

Granted by the Bank

Yours faithfully,

For (Name of Bank)

SEAL OF THE BANK

Bid Security Declaration

With reference to tender notice no. Was/Prop/872/08/2022 dated Dec 22, 2025, this is to certify that if we withdraw or modify our bid during period of validity or if we are awarded the contract and we fail to sign the contract or fail to submit a performance security before the deadline defined in this document, we are liable to be suspended for a period considered fit by the Embassy from being eligible to submit bids for contracts by the Embassy of India, Washington D.C.

[Signature(s) of the Tenderer(s) with
Name, Designation, Date & Seal]

CHECK LIST

Sl. No.	Particulars	YES/NO
1	Have you filled and submitted all forms (i) Technical bid, (ii) Financial bid, (iii) Contact detail form and (iv) Checklist ?	
2	Have you read and understood various conditions of the Contract and shall abide by them?	
	TECHNICAL BID	
3	Have you enclosed the draft/pay order of USD 2,000 as EMD?	
4	Legal Valid Entity: Have you attached the certificate issued by competent authority?	
5	VAT Registration Certificate	
6	Experience: Have you attached the attested experience certificates issued by the Organizations / Government Deptts?	
7	Have you submitted the proof of authorization to sign on behalf of the bidder in the Technical Bid?	
8.	Challan for payment of Tender fee	
9	Have your Technical Bid been prepared as per the requirements of the Tender?	
	FINANCIAL BID	
10	Have your financial Bid proposal duly filled in as per instructions?	
11	Have you quoted prices against each of the category, i.e. Manpower, agency fee, taxes, etc?	
12	Have you provided cost break ups for all components in the Financial bid?	
13	Have you attended pre-bid site visit/briefing?	

Note :- The above must be filled, signed and submitted along with the bid.

Signature of the authorized
signatory of the Tenderer with seal
of the firm/company

Name:

Mob

No.

Date: